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Gender and Judging

Edited by

Ulrike Schultz
and
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Oñati International Series in Law and Society

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Preface

Compiling a comprehensive international collection of contributions such as this one on the topic of 'Gender and Judging' represents a demanding task. The idea to set up a specific research group on the subject was born early in the new millennium. It was sparked off by the realisation of a striking difference between common law and civil law countries regarding not only women's entry to and career progression within the judiciary, but particularly remarkable, the respective reception of this process. In common law countries (mainly the United States, the United Kingdom, Canada, Australia and New Zealand) the gradual increase in the number of women who made it to judicial office including the higher echelons has been accompanied by considerable media and political attention. By contrast, civil law countries that had actually seen a much earlier and more rapid access of women to such offices and where in countries such as France, Italy and the Netherlands, the share of women by now even exceeds that of men, there has been a marked absence of any real public interest in these developments.

This opens up a fascinating field of study for legal sociology around questions such as: what exactly are the processes that have taken place in the two judicial systems? What are their causes and effects? And what, more generally, can we learn from a comparative study of developments in common and civil law countries? This volume attempts to respond to this challenge.

Our work began with a first special session on 'Gender and Judging' at the 2006 Law and Society Association (LSA) meeting in Baltimore. This has been followed by a number of subsequent events: a conference for women lawyers in April 2007 organised by Beatriz Kohen in Buenos Aires; the large international socio-legal conference in 2007 in Berlin jointly organised by the LSA, the Research Committee on Sociology of Law (RCSL) and various national socio-legal organisations, where our five panels presented a total of 18 papers; the LSA conferences in Montreal (2008), Denver (2009), Chicago (2010) and San Francisco (2011); the RCSL conferences in Milan (2008) and Oñati (2009); the meeting of the RCSL Working Group for the Comparative Study of Legal Professions in Berder, France (2008) and in Paris (2010). All in all, this has added up to some one hundred papers on the subject of 'Gender and Judging', not including those presented at numerous national socio-legal conferences—overwhelming evidence of the topic's profound and lasting interest to socio-legal scholars. In acknowledgment of this, the status of a Collaborative Research Network (CRN) of the LSA was conferred on our research group in 2008.

4. REFERENCES

- Boigeol, A (2003) 'Male Strategies in the Face of the Feminisation of a Profession: The Case of the French Judiciary' in U Schultz and G Shaw (eds), *Women in the World's Legal Professions* (Oxford, Hart Publishing).
- Botelho Junqueira, E (2003) 'Women in the Judiciary: A Perspective from Brazil' in U Schultz and G Shaw (eds), *Women in the World's Legal Professions* (Oxford, Hart Publishing).
- Brants, C and Brants, K (1991) *De sociale constructie van fraude* (Arnhem, Gouda Quint).
- De Groot-van Leeuwen, L (1991) *De rechterlijke macht in Nederland: samenstelling en opvattingen van de zittende en staande magistratuur* (Arnhem, Gouda Quint).
- (2003) 'Women in the Dutch Legal Profession (1950–2000)' in U Schultz and G Shaw (eds), *Women in the World's Legal Professions* (Oxford, Hart Publishing).
- (2009) 'Vrouwen in de rechterlijke macht. Van eigen hoekje naar de top' in M De Boer and W Marjan (eds), *Vrouw & recht. De beweging, de mensen, de issues*. iers (Amsterdam, AUP).
- De Groot-van Leeuwen, L, van Rossum, SU and Schuyt, KJM (1996) 'De aanloop tot de rechterlijke macht; verslag van een enquête onder raio's' *5a Trema* 107.
- Dijksterhuis, B (2008) *Rechters normeren de alimentatiehoogte. Een empirisch onderzoek naar rechterlijke samenwerking in de Werkgroep Alimentatienormen (1975–2007)* (Leiden, Leiden University Press).
- Fuszara, M (2003) 'Women Lawyers in Poland under the Impact of Post-1989 Transformation' in U Schultz and G Shaw (eds), *Women in the World's Legal Professions* (Oxford, Hart Publishing).
- Gilligan, C (1981) *In a Different Voice: Women's Conception of the Self and Morality* 47 *Harvard Educational Review* 481.
- (1982) *In a Different Voice: Psychological Theory and Women's Development* (Cambridge, Harvard University Press).
- Malsch, Marijke (1989) *Lawyers' Predictions of Judicial Decisions: A Study on Calibration of Experts* (Leiden, Leiden University Press).
- Raad voor de Rechtspraak (2007) *Hoofddlijnen personeelsbeleid Rechtspraak* (2008–11).
- (2009) *Jaarverslag 2008* (Den Haag).
- Schultz, U (2003a) 'Introduction' in U Schultz and G Shaw (eds), *Women in the World's Legal Professions* (Oxford, Hart Publishing).
- (2003b) 'Women Lawyers in Germany—Perception and Construction of Femininity' in U Schultz and G Shaw (eds), *Women in the World's Legal Professions* (Oxford, Hart Publishing).
- Schultz, U and Shaw, G (2003) (eds), *Women in the World's Legal Professions* (Oxford, Hart Publishing).
- Sloot, BP (1980) 'Officiële uitsluiting van vrouwen in juridische beroepen' 45/46 *NJB* 1186.
- (2004) 'Moeten rechters lijken op de Nederlandse bevolking? Over de wenselijkheid van descriptieve representatie door de rechterlijke macht' 2 *Trema* 49.
- Sullerot, E (1968) *Histoire et sociologie du travail féminin* (Paris, Gonthier).
- Ten Hoeve, P (1996), 'Trematologie, een beetje een zwartboek eigenlijk.' *NJB* 793.
- Van Teeffelen, P (2002) 'Zijn we met de Tremanormen op de goede weg?' *FJR* 130.
- Werkgroep Verbetermogelijkheden Werving Raio's (2007) *Eindrapport* (Den Haag).

3.3

Gender and Judging in Traditional and Modern Societies: A Comparison of Two Case Studies (Ivory Coast and Italy)

MARIA RITA BARTOLOMEI

Abstract

This chapter draws on two different pieces of fieldwork. On the one hand, the research relates to the specific case of the survival of traditional procedures for the resolution of conflicts in the Ivory Coast where, among the Abbron ethnic group, as in the past, we can still find women judges with their own courts of justice. On the other hand, I give the results of research based on periods of participant observation at law courts in the Marche region of Italy and on 80 in-depth interviews with both female and male judges and lawyers.

Through my work I will try to discuss how, according to Hanne Petersen's theory of so-called 'home knitted law', with female judges we can easily find intuitive-unofficial legal practices, where values like bargaining, sympathy, sharing and solidarity are more and more widespread.

Special attention is devoted to 'horizontal segregation', that is to say, to gender specialisation either in family, juvenile or immigration law and consequently exclusion from important financial and political disputes and questions. Finally, the work aims to show how through women's access to judging, considerable changes take place both in scholarship and jurisprudence. To sum up, we could say that gendered legal expertise greatly contributes to developing new jurisdictional patterns and models.

1. INTRODUCTION

LEGAL AND JUDICIAL systems are historically male institutions, but in recent decades we have witnessed cultural, social and demographic changes which have led to an increasing number of women entering the legal professions, and an increase in the proportion of women

in the judiciary has created diversity on the bench. According to Baroness Hale,¹ 'a more diverse judiciary incorporating a variety of perspectives will make a difference to the decision made' (Hale, 2001). Thus, after more than 30 years of feminist legal theory and jurisprudence, socio-legal scholars and researchers continue to debate the impact of women's presence on the administration of justice. Central to this debate are the questions whether women judges add a 'different voice' (Gilligan, 1982) and whether gender affects legal outcome (Coontz, 2000).

We have a large amount of literature on the subject today. Scholars either highlight how the assumption that women would make a difference simply by being on the bench is a questionable one (Hunter, 2008), or conclude that there is no evidence of clear-cut gender-based differences (Kohen, 2008). Starting with the work of pioneering scholars like Beverly Blair Cook, Sue Davis, Elaine Martin (Kenney, 2008: 87), the theoretical problems involved in this area have been acknowledged by feminist legal theory, and as a consequence the anti-essentialist critique is beginning to be taken seriously (Kohen, 2008: 112). Other contributions reject the 'different voice' as a simplistic and dangerous myth, even though admitting that diversity on the bench facilitates the understanding of the problems facing people (Rackley, 2008). Women, for example, seem to be more likely to rule in favour of gays and lesbians on their due process and equal protection claims (Smith, 2005). Others speak about an 'attitudinal model' (Beiner, 1999) or about women judges' advocacy of human rights and minority groups' claims and needs (Elias, 2006).²

At the same time, some scholars stress that the massive entry of women into the legal profession stems less from women's increasing gender awareness and empowerment than from structural contingencies; that is to say, from demographic, social and economic changes transforming the productive labour system and the family's organisation (Olgati, 2006).

Without claiming definitively to settle all debates on the subject, this chapter is a contribution, from an anthropological perspective, to a better understanding of the multiple ways in which gender and law can interact (Frazier and Hunt, 1998). Focusing on the well-known controversial question, 'Will women judges really make a difference?',³ the chapter summarises the main findings of two different experiences gathered in the field. The first case study relates to the survival of traditional procedures for the resolution of conflicts among the *Abron* ethnic group in the Ivory Coast. Special attention is devoted to the ability of the traditional female 'judges' in 'asking the women question' (Bartlett, 1990: 837) and in fighting for a

wider social justice through the innovative (re-)interpretation of traditional values, attitudes and patterns of behaviour.

The second study is an attempt to depict the situation of women judges in the Marche region of Italy. Here, by presenting individual experiences and different viewpoints, I will try and discuss how women judges understand their profession and its requirements, their representation of the ideal judge, their motivation to become a judge, the way they experience the power they wield, and different opinions on whether women judges decide cases differently to their male counterparts (Kohen, 2008: 120).

Drawing on the current literature on the topic and using qualitative methods, the research adopts a comparative perspective with the aim of identifying gender differences and similarities in values and attitudes. Specifically, to analyse the contributions that women judges bring, or might bring, to the judiciary, I rely on Hanne Petersen's theory about the so-called 'home knitted law' (1996).⁴ When we have female judges, in fact, we can easily find intuitive/unofficial legal practices, where values like bargaining, sympathy, sharing and solidarity are more widespread. In line with many other works on the subject, my research aims to show that, while litigant characteristics do not affect judicial decisions, the gender of the judge sometimes does (Coontz, 2000: 59).

2. WOMEN JUDGES AMONG THE ABRON ETHNIC GROUP

In this section I propose drawing on fieldwork on the specific case of the survival of traditional procedures for the resolution of conflicts among the *Abron* ethnic group.⁵ The *Chefferie Royale Abron* is a combined political and judicial institution present in the geographical and cultural area corresponding to the north eastern territory of the present day state of the Ivory Coast.⁶ It is interesting not only because of its past characteristics, but because of the role it continues to play in the present day. The Constitution of the Ivory Coast makes no explicit provision for political and judicial institutions other than those of the state. In spite of that, the *Abron*

⁴ 'The term "home knitted law"... expresses the contextual and gendered version of the most general and gender neutral term "informal law"' (Petersen, 1996: 16).

⁵ This study is based on participant observation and ethnographic interviews: chiefs (25), male elders (50), female elders (20), government officials (10), the Queen Mother and lay people (60). Here I will report data collected during the anthropological fieldworks carried out during May–June 1995 and March–April 1997, but previous information and experiences are used as well. For further information, see Bartolomei (2001).

⁶ The Ivory Coast is a country in western sub-Saharan Africa which overlooks the Guinean gulf. It has an area of 322,462 sq km and the population is 18 million: Muslim (55%), Christian (35%) and Animist (10%). The official language is French. It was a French colony until it became independent in 1960: www.state.gov/r/pa/ei/bgn/2846.htm; www.tlfiq.ulaval.ca/axl/afrique/cotiv.htm.

¹ The first and only female law lord in the UK.

² Dame Sian Elias is Chief Justice of New Zealand.

³ A famous speech by Justice Bertha Wilson, the first woman judge of the Supreme Court of Canada (Wilson, 1990).

institution of sacred kingship and a matrilineal kinship system persists and the administration of justice by the traditional King, Queen Mother and both male and female chiefs continues to be widespread.⁷

Even though in the *Abron* kingdom of *Gyaman* military and political power has always been exercised by men, we cannot neglect the symbolic as well as the real importance of women in social, political and judicial life. We can infer the significance attached to the feminine role either from many customary practices—the transmission of status and goods still occurs, for example, according to the system of matrilineal filiation; or from the fact that we can still find lineages' and/or villages' female chiefs and 'judges'; or, mostly, from the position assigned to the Queen Mother in keeping the balance and symmetry of the *Abron* institutional system.⁸ Her major competence and powers are linked to the administration of justice. The Queen Mother, in fact, has the right to interfere in the dispensation of justice by the King and his royal council, even asking for mercy or a reduction of sentence. Furthermore, she chairs her own judicial council, which has exclusive jurisdiction in the resolution of conflicts that arise among women. She continues largely to retain her traditional monopoly in the settlement of disputes in both divorce matters and quarrels between women and foreign men. In the exercise of this role the Queen Mother avails herself of the services of the council of 'women elders' which assists and advises her mostly whenever she has to deliver a final decision on sentences of lower rank female chiefs which are appealed against.

Here I propose to examine some aspects of the dispensation of justice by the *Abron* Queen and other women 'judges' that appear of particular interest.⁹ The first aspect concerns the absolutely 'informal' character of the decisions reached by women, in both a substantive and procedural sense:

One element of differentiation from modern law is in fact the 'substantial' character of the rationality to which the role of the chief and his council conforms. Decisions, once reached, do not aim to achieve the higher degree of formal juridical correctness, but are each adapted to circumstances according to the principles of ethical equity in a substantial sense or on the basis of more practical and utilitarian needs (Bartolomei, 2000: 308).

⁷ The data collected in the field show that, from an anthropological point of view, the traditional *Abron* judicial process seems to be definable, even at the present time, as an institution in the true sense of the term (Bartolomei, 2001).

⁸ The Queen Mother is the symbol of femininity and the fertility upholder; she represents and acts for all the kingdom's women, defending their claims and rights at any social level. She is in charge of any ritual dances and ceremonies and manages women's public works. She runs one or more villages and co-chairs the royal council with the King, controlling and balancing his power and elders' influence as well. Her favourable opinion in the designation of a new king is a *conditio sine qua non*. See Bartolomei (2001: 151ff).

⁹ I would like to make it clear that I have not been to the Ivory Coast since 1997 and I am not sure whether the situation has changed in the meantime.

In this regard, data collected in the field show that, in reaching their decision—women more than men—make a synthesis between experience and decision-making in such a way as to find the best solution for all parties. They offer situational, need-based, ad hoc settlements, which consider the specific social context: persons, means, interests and values involved. The 'informal' character of women's judgments can be inferred also from the absence of severe, ritually necessary procedural rules. Furthermore, recourse is never had to supernatural trials, such as oaths, ordeals and divinations (often present, by contrast, in male dispensation of justice).

Another aspect to point out is something we can label the 'communal' character of the judgement given by the female 'judge'. In fact, women's decisions—especially final decisions—can be regarded as taken by the whole community of participants: the trial is always open to the public and all participants are allowed to speak, thus contributing to a common norm-generating process. In contrast in the male system of administration of justice, the greater the severity of the procedures and the more important the ritual, the higher judges rise in the hierarchical scale. Often cases are heard behind 'closed doors' and each proceeding has its own specially qualified ranks assigned to speak.

Furthermore, the 'home knitted law' phenomenon can be qualified in the *Abron* society. The normative framework—the sum of normative myth, precept and precedent—to which *Abron* chiefs refer is clearly differentiated from the ideal type of 'rational codified law'. It is characterised instead, by reference to the 'law of the ancestors', sacred, orally transmitted and immutable in substance. At the same time the institutions of neither Islamic nor state law can be disregarded. In dispensing justice, women seem to be able to reinterpret this complex normative framework in original ways and adapt it to new external cultural dictates 'through complementing rationality and emotionality' (Petersen, 1996: 164). In contrast to their male colleagues, they completely put aside typical *Abron* martial values, sometimes also overlooking ancestral mysteries and esoteric knowledge condensed in proverbs. The evidence suggests, indeed, that they draw especially on traditional principles of bargaining, co-operation and solidarity. That means that they do not seek to achieve the complete elimination of difference and inequality—an extremely hard task for a hierarchical society—but try to manage them by creating mutual social obligations and reciprocal duties. Giving judgment in a kidnapping case, for example, the Queen decided that the child obviously had to be returned to his own mother, but at the same time she condemned the kidnapper (a poor infertile woman) to go to the family's house twice a week to help the mother in caring for the child and to stay with him(!). 'Settlement is always preferable to adjudication' the Queen reporting this case said to me.

The characteristics of the procedure by which justice is dispensed by women, in fact, appear more comprehensible if they are incorporated in

an organisational framework where traditional forms of cooperation, interdependence and mutual assistance exist both within the production unit represented by the extended family, and between the various units of production in the same village.

Whereas male chiefs manage instability, uncertainty and insecurity stemming from increasing social change, female emancipation, modernisation of law, westernisation of culture, etc, through the introduction of new criteria of selection and decision-making, women draw from the well of traditional wisdom practising a great deal of openness and flexibility. Let me give an illuminating example:

A constantly recurring problem in this area at the present time is that of the juridical identification of the criteria for the allocation of resources, especially those of land tenure ... [As I said before,] the *Abron* rules of succession provide for the transmission of status and goods according to the system of matrilineal filiation and in conformity with the norms that govern common property. These norms conflict with the principles of state law ... [that recognise only] individual ownership and a patrilineal system of property transmission ... The traditional [male] chief and his council have ... succeeded in establishing an effective rapport between these two types of jurisdiction ... [introducing] the distinction between properties inherited through family ties and property acquired during a person's life. The former ... are transmitted according to the rules of lineage; the latter, by contrast ... are transmitted according to the provisions of state law' (Bartolomei, 2000: 306–09).

In this manner, the traditional judicial process succeeded in preserving some of its distinctive traditional features, while at the same time showing a marked capacity for adaptation and innovation. However, this effective, interesting and clever solution inevitably brought about a loss of women's (matrilineal system) social power. In response, when settling divorce cases, the Queen and other powerful women have introduced and started to follow the (revolutionary) rule of practising a kind of 'informal' legal framework—to condemn the husband to transfer to his wife one or more shareholdings in the farmers' cooperatives or to buy her a stall in the local market. In this way they seek greater economic empowerment and independence of women.

To sum up, my findings clearly show that, through the traditional judicial process, the Queen Mother and the other women chiefs at lower level continue to spell out the law and to control and guide the behaviour of the community under their rule. Their role has undoubted juridical significance, and decision-making mechanisms are juridical insofar as they refer to normative tradition and myths. Furthermore, 'they are guided by certain conceptions and expectations about what is a right or a wrong way to act and behave' (Petersen, 1996: 33). To manage the needs of social change in everyday life, *Abron* women creatively reinterpret and adapt

traditional wise practices and the key values of solidarity, cooperation, interdependency, reciprocity, sharing and sympathy. In so doing, they often develop new judicial practices and norms which constitute subversive counter-forces to modernity and modern legal thinking about rationality, certainty and predictability.

Nevertheless, to use a terminology more familiar to a Western reader, it may be said that we see a clear 'horizontal discrimination' in the *Abron* system of justice: women continue to be prevented from decision-making in policy matters, disputes with big coffee and cocoa traders, lese-majesty or witchcraft crimes, to name but a few.

3. WOMEN JUDGES IN THE MARCHE REGION OF ITALY

This research is part of a wider project begun in January 2008 and still in progress. The project aims to acquire a better understanding of the contributions which women jurists (lawyers, judges and notaries) interacting with, and practising in law firms, courts and other legal fields, are currently making to the changes and transformations of legal culture. Here I will report only some provisional findings concerning exclusively women judges in the Marche region of Italy.¹⁰

The study is based on participant observation at ten law courts¹¹ and in-depth interviews¹² conducted with female judges (40)¹³ and lawyers (20),¹⁴ as well as with male judges (10)¹⁵ and lawyers (10).¹⁶ For a better understanding of the findings to date I have summarised the data collected from interviewing women judges into three main topics: (1) the balance between family and work; (2) the perception of one's own role and relationships with male colleagues; and (3) the possible contributions to legal culture.

¹⁰ The first woman member of the judiciary was appointed in Italy only in 1965. The selection process is founded on competitive examinations (the candidate must have a degree in law) and formal qualification. Given the lack of disciplinary measures and sanctions the career paths are automatic. Leading positions, instead, are elective ones. The civil law judicial system of Italy is divided into two court structures: ordinary courts and administrative courts. This study focuses on ordinary courts exclusively.

¹¹ I spent about two weeks in each court, observing the daily routines and interviewing people.

¹² The female and male judges' statements quoted in this section are not supported by reference to interviewees' initials as the judges agreed to grant interviews provided they could retain their anonymity.

¹³ Five honorary judges; eight judges of the peace; fifteen stipendiary judges; eight investigating judges; four judges of the court of appeal, no public prosecutor because there are so few in the Marche region.

¹⁴ They have been selected from four legal associations corresponding to the courts of Ancona (3), Ascoli Piceno (8), Fermo (5) and Macerata (4).

¹⁵ Five gowned judges and five judges of the court of appeal.

¹⁶ They have been selected from three legal associations corresponding to the courts of Ancona (3), Ascoli Piceno (5) and Macerata (2).

As far as other groups of interviewees (female lawyers, male judges and lawyers) are concerned, here I will give only a glimpse of their most interesting opinions on the subject.

3.1. Women Judges' Views

The sample of women judges comes from a wide variety of social backgrounds, with differing family situations and working conditions, so it is not possible to draw a uniform social profile for them.

Findings on the first topic suggest that, in the struggle to balance work and family, career and private aspirations, all women judges complain about the lack of family-friendly policies in the legal profession, institutional impediments, prejudices, a 'glass ceiling', unsuitable court schedules and so on. In any case, however, they prefer the judiciary to other legal professions because it seems easier to combine with motherhood and child care (Schultz and Shaw, 2003: 271, 281).

Women tend to experience their family and work obligations as an integrated part of their everyday life, so they often refer to chronic 'conflicts concerning competing demands for time, care and efficiency in both workplace and family' (Justice of the Peace, 30 January 2009). Sometimes, for example, the complexity and delicacy of issues dealt with in court require that case files be taken home. But simultaneously, the obligation to care for children and grown-ups, young and old, healthy and sick always falls on women.

According to interviewees, having a house to run and a family to care for is the main reason why women judges generally give up the idea of making a career. Promotion, in fact, generally means moving home to another part of the country. While formally promotion is based on length of service, in practice salary increases do not necessarily correspond to a real change in the roles that women actually fulfil.

There is another interesting finding that I would like to highlight. In the workplace generally we witness more solidarity, mutual assistance, reciprocity and cooperation among female judges and lower court personnel, who are predominantly women, than among female judges themselves. In many courts we can find patterns of collaborative behaviours among women as well as gendered practices, which could be assimilated to either Petersen's notion of 'norm of consideration'¹⁷ or to her concept of 'home knitted law' (1996).

¹⁷ It 'implies an informal actual obligation to consider needs and work obligations outside paid work' (time demands, needs for care, etc) in the organisation of paid work itself. The concrete realisation of this informal norm is 'contextual or situationally conditioned'. It can be viewed as 'a feminine contribution to law—as a norm which is produced or generated by women and in practice also mainly for women—as well as for their families' (Petersen, 1996: 46, 47, 49).

Relating to my second topic—the perception of one's own role and relationships with male colleagues—I want to stress first that more and more women in the Marche region choose the judiciary in preference to another legal profession, as it offers job security, a regular work schedule, automatic career prospects and maternity leave. Moreover, judges enjoy prestige and authority in society. Nevertheless, my interviewees also mentioned ethical and moral reasons for their choice of career, such as, for example, achieving empowerment of women and children, guaranteeing social justice, reducing the complexity of social life, fulfilling the common good, etc.¹⁸ Most of them shared an image of the ideal judge as a person who investigates how people are treated and is concerned about their legal rights being infringed. They experienced the power they wielded as a strong responsibility and were clear that they were trying to do their very best as judges. They considered their work as a public service and aimed at maintaining the highest standards in terms of honesty, impartiality, fairness, empathy, directness, sensitivity to the context of cases, as well as knowledge of the law.

In general, women judges consider themselves more patient and sympathetic than their male colleagues and more willing to find the best solution for everybody. They take the view that their office requires great courage because of the responsibility involved in the effects of their decisions on the lives of others.

Even if young women judges have recently outnumbered men in the judiciary, there are still many exclusively male-dominated fields,¹⁹ and challenges from their male colleagues are allowed to continue:

In order to overcome male hegemony and to reach higher positions we have to study and work twice as hard as our male colleagues. The most difficult thing is to reduce male prejudices about our lack of legal knowledge, trustworthiness and professionalism (Appeal Judge, 23 January 2009).

As far as their relationships with male colleagues are concerned, many interviewees agreed with the following two statements:

When you are in a joint session trying to convince male colleagues of the rightness of your opinions, reliance on either your beauty and sex appeal or on aggressiveness will not get you anywhere. In the former case they generally don't take you seriously, regarding you as an object, just a sexual object without brains, thought or will. In the

¹⁸ In this sense see also Schultz and Shaw (2003) xxxix, quoting D Rhode and L de Groot.

¹⁹ Despite the amendment of art 51 of the Italian Constitution and the constitutionalisation of the principle of 'equal opportunities', women judges are concentrated in the lower ranks of the judiciary (Justice of the Peace and honorary judges). There is also a lack of women in director (5%) and semi-director positions (7%). In the National Anti-Mafia Management (Direzione Nazionale Antimafia) there is no woman. Only 6% of judges in the Court of Cassation and only 1% of chief judges are women: G Casella, 'Donne in magistratura' *Diritto and Diritti* (2003): www.diritto.it/osservatori/giustizia_costituzione/ver_giustizia/mag_soc18.html.

latter, they react by becoming more narrow-minded, obstinate and aggressive in turn. The only way to bring them round is to demonstrate high standards of legal knowledge and expertise and above all to use your powers of persuasion and take into account all psychological aspects of the case' (Appeal Judge, 23 January 2009).

Often male colleagues are arrogant and accuse us of not taking sufficient account of leading cases (precedents) while presumptuously engaging in 'creative jurisprudence' (Stipendiary Judge, 18 November 2008).

Female judges themselves believe that their male colleagues tend inevitably to criticise and ostracise them. Reasons given are first, that female judges can claim daily and hourly maternity leave; secondly, that they are willing to go beyond economic issues and delve deeply into relational, emotional and psychological aspects of cases; and finally, for what male judges label 'feminine soft jurisprudence' (ie, a way of deciding cases that sometimes moves away from strictly classical legal reasoning and instead introduces extralegal concepts and principles).

This issue brings us close to our third topic for discussion, the impact of women judges on current legal culture. In my interviews, women judges initially tended to deny any difference or capacity that could be derived from gender. But this initial denial was frequently reversed later on closer reflection. Along with Kohen, I think that 'this first denial could be explained as a strategy on the part of women judges to ... avoid discrimination by asserting that they do not make any difference in adjudication and that women can administer justice as well as men' (2008: 116).

During my research, I rarely met a woman judge in disagreement with the idea that 'in any trial case multiple points of view must be articulated, recognised and considered seriously. Personally I try always to see the matter from an alternative perspective' (Stipendiary Judge, 18 November 2008). Although generally they do not represent themselves as feminist and reject the label of 'feminist judge', most of them stated the importance of 'asking the woman question' (Bartlett, 1990: 837) and of behaving in a way (contextualisation, particularity model, detached attention) that Hunter regards as typically feminist (2008: 11–13). In the words of a GIP (Investigating Judge, 20 February 2009):

I think that the experience of being female is a crucial element of being more willing and able to hear and understand the stories of women litigants and of listening carefully and respectfully about their lives. Our own experience enables us to respond sympathetically and to succeed in putting gendered experiences into legal discourse.

Interviewing women judges, I clearly perceived a strong willingness—indeed a determination on their part—to focus on the concrete situation of participants in the proceedings, to reason from the broader social context

on which the legal rules in question operate and to produce a decision that is individualised rather than abstract. Taking everything into consideration, they try to approach legal issues in a way that is not strictly formalistic and goes straight to the point. They do not worry about diverging from precedent and current jurisprudence. Furthermore, they do not indulge in juridical technicalities and tend to avoid adjourning a case only for procedural or technical reasons. In my experience of courts, women judges rarely decide that a case cannot proceed.

Interviewees told me that they generally study every file with great care and try to widen their knowledge by reading and integrating material from different sources, both legal and extralegal. 'Judging is an intellectual challenge that requires lifelong learning, updating and practice' (Stipendiary Judge, 12 May 2009). Anyway, they all share the opinion that 'differences with male colleagues are to be found more in the process than the outcome of the judgment' (Appeal Judge, 12 June 2008). Thus, women's different approaches to legal reasoning are often grounded in 'informal' procedures and extralegal knowledge, principles and values. Various judges in the sample referred to their willingness to explain their own reasoning in detail to parties, and their tendency to write decisions significantly longer than those of their male colleagues.

3.2. Female Lawyers' Views

In considering women's impact on the judiciary, female lawyers agreed that the gender of a judge sometimes can make a difference to the outcome of a case. According to them, even if it is impossible to tell whether another judge deciding the same case would reach the same decision, women judges tend to show a repetitive normative pattern of behaviour, especially in family law, juvenile or immigration hearings, where they reveal a great ability to establish good relationships and to be empathetic, while also paying attention to relevant details.

All the female lawyers in the sample think that, despite stereotyped images, women are truly more able to understand relationships based on emotion and affection. Furthermore, they tend to be more inclined and ready to listen to, and keep the attention of those who are outsiders to the system of male privilege. 'In contrast to commonly shared prejudices, female judges don't always automatically settle in favour of women. In divorce cases without minors, for example, women judges tend not to order the husband to provide alimony for his wife' (CP, 11 May 2009).²⁰ In this regard a certain

²⁰ This opinion was shared by more than 10 female lawyers interviewed. On pro-wife decisions in divorce cases see, eg, Martin and Pyle (2000: 1231).

'local legal culture' has developed among some female judges from Fermo and Ascoli Piceno law courts. 'This is maybe because being female judges and working women, they don't concede the admissibility of the role of a "kept woman" and try to foster the economic independence and empowerment of women in general' (PP, 15 March 2008).²¹

In contrast, where there are minors to safeguard, they tend to be extremely severe in the penalties imposed on the husband. Women lawyers affirm that female and male judges often bring different interpretations to the same situation:

Women generally approach cases of sexual abuse, sexual harassment, rape or domestic violence in a less legalistic way than their male colleagues, showing a somewhat empathetic attitude towards the victim as well as a deeper interest in the people involved and a greater attention to all the distinctive elements which contribute to making the single situation a specific and unique one (TM, 21 February 2009).

Along with scholars who point out that generally women are more likely than men to view certain behaviours as sexual harassment (Frazier and Hunt, 1998: 4, 10; Rotundo et al, 2001) the interviewees remarked that 'women and men judges often have differing perceptions of what constitutes sexual harassment or sexual abuse' (MR, 19 September 2008).

From the interviews with female lawyers there clearly emerge views on distinct gender differences in the way women judges approach decision-making. Female lawyers see their judicial colleagues as intent on achieving a better understanding of the whole situation, in a complete and non-schematic way. 'Women judges generally act in consideration of the concrete and specific context in a way that is flexible and balanced' (AV, 20 September 2008). And: 'Male judges generally look at and consider only the "fact", while women instead try to understand and explain the meaning attached to it' (BBC, 25 October 2008).

Women judges are also said to consider the hearing context as a whole, possibly because they are 'better at examining a witness and checking his/her trustworthiness' (BBC, 25 October 2008). Often they tend to be quicker and more resolute in decision-making than their male colleagues. 'Usually in deciding a case they avoid procedural exceptions and delays. Furthermore, they do not refer strictly to either general rules or precedents or current jurisprudence' (BB, 23 October 2008). Nevertheless, interviewees think that because women judges are more 'visible' and 'exposed' than their male colleagues, they are particularly aware of the great responsibility of their office.

²¹ Schultz and Shaw (2003: lv) report a quite similar phenomenon speaking about Poland and Brazil.

Women lawyers believe that sometimes there are conflicting relationships between male and female judges. Some of them explained this situation as follows: 'A woman judge is authoritative ipso facto: her unquestionable high status and the power connected with the office of judge are constantly questioning men's virility and their traditional hegemonic position' (RA, 27 February 2009). Another added: 'It is perhaps also for this reason [women's empowerment] that almost all male judges seem to be suffering from a psychologically troubled and narcissistic behaviour' (AMV, 28 February 2009).

3.3. Male Judges' Views

Male judges agree in affirming that the judiciary is effectively experiencing the feminisation of its ranks and women today are more career-minded than in the past. For some of them, women's integration into the judiciary can have a positive impact, influencing how they (men) perceive cases involving women's issues and thus promoting gender fairness in the substantive law. 'The presence of women judges can make a difference in a male judge's sensitivity to the existence and consequences of discrimination: gender-based, race-based, status-based, etc' (Appeal Judge, 13 May 2009).

For others, women are still not ready to hold office. 'They often still find it difficult to reconcile their personal experiences and feelings with a theoretical tradition of impartiality (between litigants as well as between arguments), objectivity, rationality, legality and detachment' (13 May 2009), an elderly stipendiary judge said. Male judges present themselves as constantly expanding and updating their jurisprudential resources, while women are represented as having excessive reliance on 'psy'-disciplines and on non-legal issues and problems.

As newcomers to the profession, sometimes female judges are charged by male colleagues with being too self-opinionated, quite superficial (in their rapid decision-making) and uncertain (in their resorting to so much extra-legal expertise, reports, evidence, examinations and testimonies).

Many male judges reported that gender can sometimes impact on the process of cases although it generally has little or no effect on the outcome of most cases:

Obviously different judges with different backgrounds and experiences can interpret the same factual matters differently. Judges, in fact, operate from their own perspective, but judicial decisions must be legally motivated and each of us has to take responsibility for his/her own decisions in presenting (legally acceptable) alternative reasoning in the case at hand (Stipendiary Judge, 6 February 2009).

Since the principle of equal treatment is central to our concept of justice, knowing whether women judges decide a case differently to men has profound implications for equal treatment under the law. Thus we have to hope and work to avoid it (Appeal Judge, 10 February 2009).

Women are often criticised by male colleagues for taking too much leave of absence and too many sick days, as well as for sometimes using their office in the courtroom as a place to care for their children or give them somewhere to wait while they are in court.

Speaking about horizontal segregation most interviewees think that

women themselves prefer either family law or the juvenile or immigration sector of the legal system because of their greater sensitivity for desire to help others and because they feel more suited to matters which are less difficult and complicated from the legal point of view and nearer their everyday experience and practice (Stipendiary Judge, 6 February 2009).

'Women develop both the preference and the capacities that make them more suitable to deal with family matters' (Employment Judge, 21 May 2008).

Most of the sample believe that the absence of women from senior courts and appointments is not due to clear and deliberate exclusion and discrimination from male colleagues, but 'a lack of interest on the part of women and their unwillingness to go after leading positions and mostly on their lack of availability given the need to accept moving home and longer working hours' (Appeal Judge, 6 June 2008). Only a few admit that the whole organisation of the justice system is patriarchal and women still have to fight to achieve real dignity, respect and equality.

3.4. Male Lawyers' Views

Most male lawyers interviewed agree that female judges sitting on the bench sometimes are really different from their male counterparts. 'Occasionally female judges effectively favour female lawyers' (PB, 18 September 2008). 'It depends not so much on feminine solidarity and complicity but is especially because they [women lawyers] are strong civil and human rights defenders' (JB, 18 September 2008). 'Sometimes male and female judges approach legal issues differently: whereas men aim to reach formal juridical perfection, women seek a concrete solution able to definitively settle the conflict' (SA, 23 September 2008).

Male lawyers state that women judges tend to be quicker than their male colleagues in deciding cases even though they generally allow more evidence to be called. 'To show they are equal to a situation they like working across disciplinary boundaries' (LS, 14 February 2009). 'Whereas male judges' qualifications and training are strictly juridical (doctrine and jurisprudence), women tend to improve their extra-legal knowledge' (RD, 14 February 2009).

But, according to male judges, male lawyers do not interpret these patterns of behaviour as always having solely positive outcomes. They link both of them to a sort of feminine 'juridical insecurity' which sometimes

produces dysfunctional and perverted effects on single cases and also on the legal system as a whole.

From the interviews with male lawyers emerges the belief that 'women judges are usually less predictable than men judges mostly because of their tendency to moodiness and fickleness as well as of their propensity to decide each case differently to any other' (SG, 24 October 2008). They stress that whereas lawyers always have to act carefully and responsibly given that they personally answer for wrong behaviour either to clients, judges or colleagues, the judiciary enjoys a lot of discretion and freedom from criticism (*insindacabilità*). In fact, except for rare cases of serious crime or damage, they see judges as answerable to no one and only extremely rarely subjected to disciplinary measures or sanctions.

Lawyers believe that this kind of 'immunity', along with job security, certainty over income, sick days, maternity leave and the power and prestige related to the office, explains women's preference for the judiciary over a career with a law firm. Besides, in the collective mind of the legal profession, judges are considered to be of higher social status than lawyers, especially within provincial or small town courts.

Various lawyers in the sample declared that women judges generally tended to be less strict about rules and timetabling, and more conciliatory towards lawyers' claims and needs than their male colleagues. Interviewees by and large stressed that when a female judge is sitting, the chances of friction and disputes during the process are extremely rare. Male lawyers generally behave in a more conciliatory fashion, avoiding aggressiveness, conflict and opposition, persuaded that 'although sometimes they adopt a "woman's viewpoint" in the context of women's issues, generally women judges try to maintain neutrality and fairness, while eliminating sources of conflict between parties' (FG, 16 May 2009).

3.5. Overview

The civil law's nostrum that the judge must be neutral and apply the law strictly in line with judicial objectivity and laid down rules means that discussing influences of gender on judging can be unacceptable (Schultz and Shaw, 2008: 3). Nevertheless, recently socio-legal scholars have seen the issue of 'gender and judging' as one of considerable and lasting interest (Schultz and Shaw, 2008: 1). This rapid glimpse at a few provisional findings appears to confirm some interesting trends.

First to emerge is the importance which women judges assign to contextualisation, that is to say the tendency to consider the specific situation of the parties and to understand the broader social context, the so-called 'social framework evidence' (Hunter, 2008: 12). This means that they try to concentrate on the reality of people's lives rather than on narrow doctrinal issues. In both traditional and modern societies, women seem to prefer

'individualised decision-making', ie, what O'Sullivan (2007)²² refers to as a 'particularity model' of judging.

In Italy, women lawyers stress women judges' ability is to think relationally, and with attention, compassion and concern (classical elements of the well known 'ethics of care': Gilligan, 1982) while adopting what literature on the topic labels as 'practical reasoning' (Bartlett, 1990: 849–50; Hunter, 2008: 12). In fact, currently, when the national and international legal landscapes appear totally confused and a spatial, temporal and conceptual relativity seems to scramble all the usual reference points (Delmas-Marty, 2002) the force of reasoning could be the key criterion for passing fair, effective and suitable sentences.

Speaking about gender relations it seems to me very important to specify that I often witnessed a mismatch between what women judges said and what they effectively do. In fact, observing gender interaction in law courts I noticed that—contrary to their statements—women judges often show and use their sex appeal, feminine charm and fascination to capture male attention, agreement and consensus of opinion. For example, during my periods of participant observation I noticed that some of them often dress in a scanty way, with short skirts and plunging necklines.

Male judges very much sustained the traditional stereotype. They stressed especially women's propensity to look at family problems in their full complexity with a greater sensitivity for the context, thus explaining and justifying the high number of women in family law, as compared with other sections of the judiciary (*cf* Mossman's (2009) reference to 'pink files' and 'blue files'). In fact, women are frequently in charge of areas related to the roles they have traditionally performed within the family.

Despite the large increase in Italy in the number of women receiving legal education and their advance in the judiciary, female judges are still located at the bottom of the judicial pyramid. Their domestic responsibilities affect their career choice and chances of advancement, and they still suffer the persisting phenomena of horizontal and vertical segregation (according to Schultz and Shaw (2003: xlvii, li, 281–82) this phenomenon is quite common in other European and non-European countries).

As we have seen, although women judges are the stronger supporters of women's rights claims, the areas where women judges differ from men are not always around women's issues. Besides, not all women have the capacity or the willingness to represent women's perspectives and experiences. As feminist standpoint theory has taught us, gender consciousness is acquired; it is not an automatic component of biological identity (Kenney, 2008: 103–04). It is important to stress also that women are sometimes more

²² Quoted by Hunter (2008: 12).

transformed by institutions than they are capable of transforming them (*cf* Schultz and Shaw, 2003: lii–liv).

Admittedly, my research lacks control of individual characteristics other than gender. This might attract the criticism that what I consider as gendered differences might be rooted in other sources and therefore present a somewhat partial view of the situation. Nevertheless, the data collected suggest that all interviewed persons from the different categories seemed likely to agree that in some areas women judges do behave differently from men. Although in both Italy and the Ivory Coast, interviewees in principle seemed likely to agree with the statement that 'a wise old man and a wise old woman reach the same conclusion',²³ most of them afterwards, in answering my questions and thinking over the subject, changed their minds.

The evidence, however, suggests that gender does not operate in a self-evident fashion. In accordance with feminist legal theorists, in fact, we do not have to see sex in an essentialist way and assume gender differences. I therefore tried to investigate when gender can be seen empirically to produce attitudinal differences (Kenney, 2008: 95). Given that gender is a social process and therefore does not work in a fixed, predictable, static way, it is clear we cannot predict from the judge's gender how (s)he will decide.

4. CONCLUDING REMARKS

To sum up, three key hypotheses have emerged so far about the impact that gender has, or could have, on the judiciary.

First, the most significant contribution that women currently seem to be making to the judiciary (especially the family law judiciary) is the introduction of an interdisciplinary approach to the resolution of trial cases. Avoiding the rigid application of universal rules and narrow doctrinal issues, but taking into account the particular circumstances of the case in point and integrating material from different sources both legal and extralegal, female judges are promoting fairness, equality and substantive justice.

Secondly, women appear to be more inclined to stress the effect that non-legal factors can have on judicial decisions. Practising and disseminating values like bargaining, sympathy, sharing, immediacy and solidarity, women judges contribute to challenging the dominant understanding of what the law is or is considered to be (especially as far as Western law is concerned). In fact, if the relationship between modern law and rationality has often been discussed, the role of emotions in law and societal orders has rarely been addressed. It seems crucial that future research and practice should pay more heed to the relation between norms and feelings. As the actions and decisions of individual women will be guided by

²³ Quoting Minnesota Supreme Court Justice M Jeanne Coyne (Martin, 1993: 126).

emotions linked to values, they will inevitably contribute to the ways norms and behaviour develop (Petersen, 1996: 15).

Finally, there is another important issue I would like to point out. It was almost taken for granted—and hardly questioned by any of the interviewees in the Marche region—that women judges may effectively influence their male colleagues, either directly or indirectly, and yet in an absolutely unpredictable way. In bringing an important diversity of approaches to the decision-making process, and offering a different explanation of why a given result should be reached, women foster a shift in the male judges' attitudes, thinking and behaviour. More specifically, we witness in women a greater sensitivity to, and advocacy of, human rights and the claims and needs of minority groups. In offering a contribution of this kind, they may open up the space for novel ways of conceptualising difference and otherness and promoting substantive equality.

Despite differences and peculiarities in both the above-mentioned case studies, we can identify women's strategies for articulating an alternative vision of the real, for redrawing the boundary between the legal and the social, and for challenging how we think about the law itself, either modern or traditional. They occupy their role as judge in a constructive way to imagine and build a more complete vision of the law and its impact on people's everyday practices and experiences.

5. REFERENCES

- Arden, M (2008) Address to the Association of Women Barristers' Annual General Meeting (3 June).
- Bartlett, K (1990) 'Jurisprudence and Gender' 55 *University of Chicago Law Review* 1.
- Bartolomei, MR (2000) 'The Traditional Judicial Process among the Abnong as an Instrument for the Legal Control of Social Change' in A Febbrajo, D Nelken and V Olgiati (eds), *Social Processes and Patterns of Legal Control: European Yearbook of Sociology of Law* (Milan, Giuffrè).
- (2001) *Giustizia tradizionale e mutamento sociale* (Milano, Giuffrè).
- Beiner, TM (1999) 'What will Diversity on the Bench mean for Justice?' 6(1) *Michigan Journal of Gender and Law* 113.
- Belleau, M-C and Johnson, R (2008) 'Judging Gender: Difference and Dissent at the Supreme Court of Canada' 15(1-2) *International Journal of the Legal Profession* 57.
- Coontz, P (2000) 'Gender and Judicial Decisions: Do Female Judges Decide Cases Differently than Male Judges?' 18(4) *Gender Issues* 59.
- Davis, S (1992-93) 'Do Women Judges Speak "In a Different Voice?": Carol Gilligan, Feminist Legal Theory and the Ninth Circuit' 8 *Wisconsin Women's Law Journal* 143.
- Delmas-Marty, M (2002) *Towards a Truly Common Law* (Cambridge, Cambridge University Press).
- Elias, S (2006) 'Changing our World' International Association of Women Judges' Conference (Sydney, 4 May).

- Frazier, PA and Hunt, JS (1998) 'Research on Gender and the Law: Where are we Going, Where have we Been?' 22(1) *Law and Human Behavior* 1.
- Gilligan, C (1982) *In A Different Voice: Psychological Theory and Women's Development* (Cambridge, Harvard University Press).
- Graycar, R (2008) 'Gender, Race, Bias and Perspective: Or, How Otherness Colours your Judgment' 15(1-2) *International Journal of the Legal Profession* 73.
- Gutek, B and O'Connor, M (1995) 'The Empirical Basis for the Reasonable Woman Standard' 51 *Journal of Social Issues* 151.
- Hale, B (2001) 'Equality and the Judiciary: Why Should We Want More Women Judges?' *Public Law* 489.
- Hunter, R (2008) 'Can Feminist Judges Make a Difference?' 15(1-2) *International Journal of the Legal Profession* 7.
- Kenney, SJ (2008) 'Thinking about Gender and Judging' 15(1-2) *International Journal of the Legal Profession* 87.
- Kohen, B (2008) 'Family Law Judges in the City of Buenos Aires: A View from Within' 15(1-2) *International Journal of the Legal Profession* 111.
- L'Heureux-Dubé, C (1997a) 'Making a Difference: The Pursuit of a Compassionate Justice' 14 *Canadian Journal of Family Law* 103.
- Martin, E (1993) 'The Representative Role of Women Judges' 77(3) *Judicature* 166.
- Martin, E and Pyle, B (2000) 'Gender, Rise and Partisanship on the Michigan Supreme Court' 63 *Albany Law Review* 1205.
- Martin, PY, Reynolds, JR and Keith, S (2002) 'Gender Bias and Feminist Consciousness among Judges and Attorneys: A Standpoint Theory Analysis' 27(3) *Signs* 665.
- Mossman, MJ (2009) 'Bertha Wilson: "Silences" in a Woman's Life Story' in K Brooks (ed), *Justice Bertha Wilson: One Woman's Difference* (Vancouver-Toronto, UBC Press).
- Noddings, N (1984) *Caring. A Feminine Approach to Ethics and Moral Education* (Berkeley, University of California Press).
- Olgiati, V (2006) 'Donne & lavoro. L'inclusione della differenza di genere nelle attività economiche e professionali' 3 *I Quaderni dell'Istituto di Sociologia* (Università di Urbino).
- Palmer, B (2001) 'Women in the American Judiciary: Their Influence and Impact' 23(3) *Women and Politics* 89.
- Peresie JL (2005) 'Female Judges Matter: Gender and Collegial Decisionmaking in the Federal Appellate Court' 114 (7) *Yale Law Journal* 1759.
- Petersen, H (1996) *Home Knitted Law. Norms and Values in Gendered Rule-Making* (Aldershot, Dartmouth).
- Rackley, E (2008) 'What a Difference Difference Makes: Gendered Harms and Judicial Diversity' 15(1-2) *International Journal of the Legal Profession* 37.
- Rotundo, M, Sackett, PR and Nguyen, Dung-Henh (2001) 'A Meta-Analytic Review of Gender Differences in Perceptions of Sexual Harassment' 86(5) *Journal of Applied Psychology* 914.
- Schultz, U and Shaw, G (2003) (eds), *Women in the World's Legal Professions* (Oxford, Hart Publishing).
- (2008) 'Editorial' *International Journal of the Legal Profession*, Special Issue on Gender and Judging 1, 5.
- Smith, FO (2005) 'Gendered Justice: Do Male and Female Justice Rule Differently on Questions of Gay Rights?' 57 *Stanford Law Review* 2087.
- Wilson, B (1990) 'Will Women Judges Really Make a Difference?' 28 *Osgoode Hall Law Journal* 507.

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